Rajesh Jha vs State on 17 March, 2023

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 885/2023, CRL.M.(BAIL) 382/2023 & CRL.M.A. 7072/2023
RAJESH JHA ..... Petitioner
Through: Mr. Vikas Pahwa, Sr. Advocate with Mr. Shadman Siddiqui, Ms. Namisha Jain and Mr. Arun Kanwa, Advocates.
versus
STATE ..... Respondent
Through: Ms. Richa Dhawan, APP for State. Insp. Awadhesh Kr. Singh, IO, PS EoW , New Delhi. Mr. Adit S Pujari, Advocate with Mr. Maitreya Subramaniam and Mr. Rudraksh Nakra, Advocates for complainant.
+ BAIL APPLN. 887/2023, CRL.M.(BAIL) 383/2023 & CRL.M.A. 7089/2023
AJAY TIWARI ..... Petitioner
Through: Mr. Saurabh Kripal , Sr. Advocate with Mr. Shadman Ahmed Siddiqui and Mr. Nikhil Arora, Advocates.
versus
STATE ..... Respondent
Through: Ms. Richa Dhawan, APP for State.Insp. Awadhesh Kr. Singh, IO, PS EoW , New Delhi. Mr. Adit S Pujari, Advocate with Mr. Maitreya Subramaniam and Mr. Rudraksh Nakra, Advocates for complainant.
CORAM:
HON'BLE MR. JUSTICE ANISH DAYAL
ORDER

% 17.03.2023

1. These bail applications have been filed for seeking anticipatory bail to the petitioners in relations to the FIR No. 14/2022 under Sections 408/420/467/468/471/120B IPC at PS EOW.

2. Learned Senior Counsel for the petitioners have submitted that the petitioners have been arrayed as accused in the said FIR. After the registration of the FIR the police conducted an investigation and issued notice under Section 41A Cr.P.C on 02nd September, 2022. Pursuant to the same, on 14th September, 2022 the petitioners joined the investigation. Subsequent thereto, on 20th December, 2022, charge sheet was filed where only one accused was arrayed namely Ajay Khera, while number of others including the petitioners were arrayed in column No. 12. On 17th January, 2023, the learned CMM South East District, Saket Courts, in a summary manner without providing

any substantial reasons, recorded that considering the charge sheet and documents there is material to show on record that prima facie the petitioners along with other parties who were added in column 12 had committed an offence punishable under Sections 408/420/467/468/471/120B IPC and accordingly took cognizance.

3. On 16th February, 2023 when the petitioners were represented through counsel before the learned CMM, application was filed for the petitioners to join through VC since they had come to know that the matter had been transferred to the Court of the learned ACMM from the Court of learned CMM. The application was allowed however the learned ACMM stated that they would have to appear on the next date. The application under Section 88 r/w Section 437 of Cr.P.C. was moved on behalf of the petitioners on that day seeking bail when the said matter would be taken up. The learned Senior Counsel for the petitioners states that in accordance with the procedure for seeking bail at the stage of being summoned under Section 204 Cr.P.C., in addition interim bail was sought before the learned ACMM which was rejected on the basis that anticipatory bail of another accused Hira Malhotra was dismissed by learned ASJ. Aggrieved by this order of 16th February, 2023 and being in the apprehension of the arrest when they appear before the learned Trial Court, these petitions have been moved for seeking anticipatory bail.

4. Learned Senior Counsel for the petitioners have relied upon the orders of this Court in Sandeep Khosla v Serious Fraud Investigation Office, Bail Application No. 2734/2022 orders dated 13th September, 2022 and 26th September, 2022 where this Court has in similar circumstances adverted to the decision of the Constitution Bench of the Hon'ble Supreme Court in Sushila Aggarwal and Ors v State (NCT of Delhi) & Anr, (2020) 5 SCC 1, as also the observations and guidelines of the Hon'ble Supreme Court in Satender KunarAntil v CBI & Anr (2022), SCC OnLine SC 825, and was accordingly inclined to pass directions that for the accused to appear before the learned Trial Court and in case the application for the bail is dismissed, not be taken into custody for 10 days.

5. Learned Senior Counsel also relied upon the aforementioned decisions of Hon'ble Supreme Court stating accordingly that an anticipatory bail application can be preferred at any stage even after the investigation complete.

6. Learned counsel for the complainant has however objected vehemently to this procedure being adopted inter alia on the ground that when regular bail application was pending before the learned Trial Court such an anticipatory bail application may not be maintainable and for this he relies on Practice Directions of this Court at Chapter 10 Serial No. 14 where it states that the High Court may decline to entertain the applications for bail unless the Sessions Judge or the Court trying the case has already been applied to and has rejected the application.

7. Learned APP further objects to maintainability of this application.

8. Having pursued the decisions of the Hon'ble Supreme Court cited above as also the prior orders of this Court in Sandeep Khosla (supra), as also other decisions which have been cited by the petitioner in the bail petition particularly in para 9, this Court is of the opinion that in these circumstances particularly when at this stage the charge sheet has been filed and the said petitioners

were arrayed in column No. 12, and in view of the these above noted facts and circumstances, the petitioners may appear before the learned ACMM today on 17th March, 2023 but in case the application for bail is dismissed, they shall not be taken into custody for the next one week from the date of custody order.

9. Needless to say that nothing observed in the order above is an expression on merits of the matter, and the said directions are being passed in the peculiar facts and circumstances.

10. Learned ACMM may proceed to determine the rights and contentions of the parties in accordance with law, and on merits.

11. Both the above captioned bail petitions are disposed of with these directions. Pending applications if any are disposed of as infructuous.

12. Copy of the order be given dasti under the Signature of the Court Master.

13. Order be uploaded on the website of this Court.

ANISH DAYAL, J MARCH 17, 2023/RK